CITY OF ALAMEDA MEASURE N

N Proposed City Charter Amendment Ballot Measure Shall the measure amending Section 3-10 of the City Charter to change sales or leases of City real property exceeding one year to be approved by resolution rather than by ordinance and to reduce the City Council approval threshold from supermajority (four affirmative votes) to simple majority (three affirmative votes) for leases of City real property not exceeding ten years be adopted?	**YES** **NO**

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE N

This Measure was placed on the ballot by the City Council of the City of Alameda acting upon the recommendations of an ad-hoc Charter Review Subcommittee. If approved by voters, this Measure would amend the Alameda City Charter to 1) allow the City Council to approve acquisitions, transfers (including sales), or leases of City-owned real property by resolution rather than by ordinance, and 2) allow the City Council to approve leases of City-owned real property for terms of less than 10 years by majority rather than supermajority vote.

Currently, under the City of Alameda City Charter, all acts of the Council providing for the acquisition, transfer/sale, or lease of City-owned real property for a term longer than one year must be adopted by ordinance. Ordinances must be adopted at two separate Council meetings and require a 30-day waiting period after final adoption before they take effect. By contrast, resolutions may be adopted at a single meeting and take effect immediately upon adoption by Council. Accordingly, if approved by voters, this Charter amendment would shorten by approximately 45 days the timeline for Council approvals of acquisition, transfer/sale, or lease of City-owned real property.

Additionally, under the current version of the City Charter, all acts of the Council providing for the acquisition, transfer/sale, or lease of City-owned real property for a term longer than one year must be approved by a Council supermajority (i.e., at least 4 out 5 Councilmembers voting "yes"). If approved by voters, this Charter amendment would reduce this requirement to a simple majority (i.e., at least 3 out of 5 Councilmembers voting "yes") for leases with terms 10 years or less. However, leases with terms greater than 10 years will still need approval by a Council supermajority.

Nothing in this Measure modifies Alameda City Charter Section 22-12, which requires (and will continue to require even if this Measure is adopted) voter approval for sales of City public parks.

A "Yes" vote is a vote to allow Council approval of acquisitions, transfers, or leases of City real property by resolution; and to allow Council approval of leases of less than 10 years by simple majority. A "No" vote is a vote to retain the requirement that Council approval of acquisitions, transfers, or leases of City real property must occur by ordinance, and that leases of more than one year but less than 10 years be approved by a Council supermajority. This Measure would take effect if approved by a majority of the voters who vote on the Measure.

s/ YIBIN SHEN
City Attorney

ARGUMENT IN FAVOR OF MEASURE N

Alameda's future depends on our ability to make careful decisions and to act when good opportunities arise. Vote YES on this measure to modernize the City's outdated process for approving leases and property transactions.

Today, even routine leases can require unnecessary procedural steps and, in some cases, a supermajority vote. These requirements can delay negotiations, discourage prospective tenants, and make Alameda less competitive with other communities. The problem is especially significant at Alameda Point, where successful redevelopment depends on attracting businesses, services, and organizations willing to invest in our community.

This measure creates a more practical and balanced process. Leases of ten years or less could be approved by a majority of the City Council, allowing the City to respond more quickly to qualified tenants while preserving public review and accountability. Leases longer than ten years would continue to require four Council votes, maintaining an added safeguard for the City's most consequential long-term commitments.

The measure would allow the Council to approve leases and sales of City property by resolution rather than ordinance. That change eliminates an unnecessary second meeting while preserving public notice, open discussion, and a recorded vote by elected Councilmembers. It does not remove public oversight or permit staff to make these decisions behind closed doors. Every proposed transaction would remain subject to a public agenda, Council deliberation, and approval on its merits.

A more efficient process will help Alameda fill vacant properties, generate revenue, support local jobs, and accelerate the transformation of Alameda Point into a thriving mixed-use community. It will also strengthen the City's reputation as a responsible and responsive partner for businesses and nonprofit organizations.

This is a sensible reform that preserves accountability while removing delays that serve little practical purpose.

Vote YES to help Alameda act efficiently, attract responsible investment, and move important community projects forward.

s/MARILYN EZZY ASHCRAFT
Mayor, City of Alameda

s/MICHELE PRYOR
Vice Mayor, City of Alameda

s/GREG BOLLER
Councilmember, City of Alameda

s/BROCK GRUNT
President, McGuire and Hester and Board Chair, Alameda Chamber

s/NATHAN SAICHK
Chief Technology Officer, Longshot Space and Alameda Resident

REBUTTAL TO ARGUMENT IN FAVOR OF MEASURE N

Vote NO on Measure N

The proponents ask voters to believe this measure is simply a procedural update. It is not. It makes **two significant changes** that permanently weaken protections for City-owned property.

First, it lowers the voting requirement for approving City-owned property leases of up to ten years from a **four-vote supermajority to a simple three-vote majority**. Public land belongs to the entire community. Decisions affecting these valuable public assets can have lasting consequences and should require broad consensus **represented by the currently required 4 votes.**

Second, the measure replaces approval by **ordinance with** approval by **resolution**. Ordinances require two public meetings, **2 weeks apart,** before final adoption, giving residents time to learn about proposal, ask questions, and express any concerns before irreversible decisions are made. In contrast, a mere resolution requires only one meeting.

These 2 Charter protections have served Alameda for decades by promoting transparency, accountability, and careful deliberation before City property is sold or leased. The measure offers **no compelling reason to reduce public oversight** or weaken the level of agreement required for decisions involving assets that belong to every Alameda resident.

Our City properties are extremely valuable, irreplaceable assets. Thoughtful planning and a supermajority vote requirement help ensure that any development reflects broad consensus, *a*nd serves the best interests of both the City and its residents. When it comes to our public properties, transparency and broad agreement are strengths-not obstacles.

Vote NO on Measure N

s/TONY DAYSOG
Alameda City Councilmember

s/REYLA GRABER
Resident

s/DOROTHY A. FREEMAN
Alameda Concerned Citizen

s/JANET DAVIS
Animal Advocate

ARGUMENT AGAINST MEASURE N

This is the most important point: the current 4-vote requirement *as is* helps ensure that City Council doesn't proceed so fast as to only accommodate developers or commercial tenants; the requirement *as is* ensures that Council accounts for the People's needs.

The examples below illustrate that, even with the current 4-vote requirement *as is*, City Council approved many sales and leases for new private projects that included public amenities for the enjoyment of our residents -- especially at Alameda Point, where much city-owned property is located:

- Bayport: a well-planned single-family home neighborhood built around an elementary school, a 4-acre park, and four smaller "pocket parks".
- Alameda Landing: a large commercial-residential project that included the waterfront Bohol Circle Immigrant Park.
- "Site A": an 800 high-density units residential project involving the creation of the beautiful Seaplane Lagoon waterfront park.
- The Alameda Food Bank: a modern, well-designed, family-friendly service (https://archive.ph/r37ZK).
- Natel: a climate technology company leasing space along hangar row.
- Pyka: an autonomous electric aircraft tenant with science projects for youths.

The above shows the current 4-vote requirement *as is* does not hold up progress.

Thus, there is no compelling reason to weaken *in any way* longstanding protections offered by the current *as is* 4-vote requirement.

Keep the 4-vote requirement *as is* : it is an important tool that keeps in check anyone eyeing Alameda properties: giving up Alameda's valuable assets requires a consensus of at least all-but-one of the council members.

The 4-vote requirement was an issue in a 2023 matter involving a Marina Village live animal-testing ("neuralink lab monkeys" : https://archive.isim3bdX) business seeking to expand at Alameda Point, which was rejected in a Council vote that *correctly* accounted for the steep division within our city over live animal-testing pros and cons.

Please Vote No.

s/TONY DAYSOG
Alameda City Councilmember

s/REYLA GRABER
Resident

s/DOROTHY FREEMAN
Alameda Concerned Citizen

s/JANET DAVIS
Animal Advocate

REBUTTAL TO ARGUMENT AGAINST MEASURE N

The opposition blurs the measure's most important limits.

This measure does not reduce the four-vote requirement for selling City property, nor does it reduce the requirement for leases longer than ten years. Those specific decisions will still require four affirmative Council votes.

The voting-threshold change applies only to leases of ten years or less, allowing the same three-vote majority normally used for Council decisions. Every such lease will still appear on a public agenda, receive public comment and Council debate, and require a recorded vote. A resolution removes a duplicative second reading and 30-day delay; it does not remove public oversight.

The large developments cited by opponents—Bayport, Alameda Landing, and Site A—do not explain why a shorter lease should require a supermajority. Major sales and long-term leases would still require four affirmative votes.

The Science Corporation example also does not prove the opposition's point. The Council ultimately voted 4-1 not to proceed, and Alameda later prohibited animal testing on City-owned property. This measure does not repeal that protection.

Alameda's existing rule is unusually restrictive. In a City survey of 28 nearby jurisdictions, all but Oakland used majority approval for leases and sales, and three-quarters used resolutions rather than ordinances.

This is a limited reform: majority rule for shorter leases, continued supermajority protection for sales and longer commitments, and full public review.

Vote YES.

s/MARILYN EZZY ASHCRAFT
Mayor, City of Alameda

s/MICHELE PRYOR
Vice Mayor, City of Alameda

s/GREG BOLLER
Councilmember, City of Alameda

s/BROCK GRUNT
President, McGuire and Hester and Board Chair, Alameda Chamber

s/NATHAN SAICHK
Chief Technology Officer, Longshot Space and Alameda Resident

FULL TEXT OF MEASURE N

CITY OF ALAMEDA CHARTER AMENDMENT

Sec. 3-10.

(A) All acts of the Council imposing penalties, prescribing public regulations, or granting franchises shall be by ordinance., ~~or~~

(B) All acts of the Council providing for the acquisition, transfer or lease for a period longer than one year, of real property, shall be ~~by ordinance; provided, however, that the acquisition of real property, or any interest therein, may be authorized~~ by resolution~~, when the purchase price to be paid, together with any obligation imposed on the City in connection with any such acquisition, does not exceed the sum provided by the general law for cities requiring competitive bidding for the purchase of supplies and materials, or when such acquisition is to be accomplished by condemnation in eminent domain proceedings, or in connection with public improvements proceedings taken under some law~~.

(C) No real property of the City, including Tidelands, shall be leased for a period in excess of ~~one~~ ten years or sold, except upon the affirmative vote of four members of the Council.

(D) The provisions of this section shall not apply to the acquisition or transfer of real property when, pursuant to procedure established by ordinance or by any code or general law of the State of California, such property has been acquired, or is transferred or acquired in satisfaction, foreclosure or enforcement of a lien for taxes or special assessments of any character.